

HCJDA-38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
LAHORE
(ELECTION TRIBUNAL)

Election-petition No. 20792 of 2024

Shahzad Nazir

Versus

Election Commission of Pakistan and 22 Others

JUDGMENT

<i>Dates of hearing</i>	<i>08.11.2024, 10.01.2025, 11.02.2025 and 18.02.2025.</i>
<i>Petitioner by</i>	<i>Mr. Muhammad Shan Gul, learned Advocate.</i>
<i>Respondent No. 3 / Returned Candidate</i>	<i>Mr. Shamim-ur-Rehman Malik (filed power of attorney on 18.02.2025), learned Advocate.</i>
<i>Respondent No. 1</i>	<i>Mr. Muhammad Imran Arif Ranjha, learned Legal Advisor.</i>
<i>Respondents No. 2, 4 to 22</i>	<i>Ex-parte vide order dated 21.06.2024.</i>

SULTAN TANVIR AHMAD, J:– On

08.11.2024, learned counsel for the petitioner was confronted with the position that the verification of the election-petition does not contain any date and the relevant part has been left blank as well as the attestation by the oath commissioner instead of stating that the “petitioner is personally known to him / the oath commissioner” reads “in person”. Another objection was raised regarding the certificate of oath commissioner that

the same reflects one Raja Rashid Hafeez has appeared before the said oath commissioner instead of Shahzad Nazir (petitioner); that Raja Rashid Hafeez has no relation with the petitioner. Upon this, learned counsel for the petitioner stated that the same is due to the reason that English is not the first language of the oath commissioner.

2. At the request of the learned counsel for the petitioner chance was given to distinguish his case from the law settled in case titled “Abdul Wahab Baloch Versus Imran Ahmad Khan Niazi and Others” (PLD 2019 Lahore 119) and also to assist as to whether it was incumbent upon the oath commissioner to give the certificate in ‘English’, if he was not well conversant with this language or if there is any embargo to give the certificate in ‘Urdu’. Thereafter, learned counsel for the petitioner instituted a civil miscellaneous application (C. M. No. 01 of 2025) accompanied by affidavits of the oath commissioner (one in ‘English’ and another one in ‘Urdu’) giving some explanation.

3. Today it is argued that words contained in the stamp of the oath commissioner are “I am personally” and petitioner is a lawyer and actually the oath commissioner namely Malik Tazakat Hussain intended to write that I am personally known to the petitioner.

Learned counsel stated that the said fact has been clarified in the affidavits dated 3rd December, 2024 of the oath commissioner, which are attached with C. M. No. 01 of 2025. Before going further I would like to reproduce the affidavits attached with C. M. No. 01 of 2025. Scanned images of the said two affidavits are as under:-

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AFFIDAVIT OF
MALIK TAZAKAT HUSSAIN OATH COMMISSIONER LAHORE HIGH COURT LAHORE.

1. Shazhad Nazir, son of Ch. Nazir Ahmad is known to me because he is a lawyer lives in Lahore.
2. He came before me on 30.03.2024 for verification of election petition.
3. He sign the petition and verified the petition before me on 30.03.2024.
4. His brother Ch. Ashfaq Hussain, son of Ch Nazir Ahmad (CNIC No.35202-0895663-1) who I also know was with him as an identifier. But I knew him personal-ly and that is why there had been no to use the identifier.
5. On the stamp put by me on the petition I wrote that I am personally known to show that I know Shahzad Nazir personally and no need to use identifier. I did not write in person.
6. I had not knowledge that I should write "He is personally known to me" My handwriting on my stamp show "m" and not "n" when I wrote I am personally known. It is cleare that there is no word to "Person" but personally known is written by me.
7. I also printed the petition. A petition filed by Raja Rashid Hafeez from Rawalpindi by the same lawyer was saved in my system. I changed that. By mistake the name of Raja Rashid Hafeez was left without change. But the CNIC number mentioned is CNIC of Shahzad Nazir.

DEPONENT 3/12/24

Verified on oath on this 3rd day of December, 2024 at Lahore, that the contents of the above affidavit are true and correct according to information and belief and nothing has been concealed therein.

Declared on Oath before me
on 3/12/24
Mr. Malik Tazakat Hussain
S/o Malik Tazakat Hussain
R/o Malik Tazakat Hussain
Identified by Mr. Malik Tazakat Hussain

DEPONENT 3/12/24

MALIK TAZAKAT HUSSAIN
OATH COMMISSIONER
Lahore High Court
Notarisation No. 1/1/24
Sd/- Malik Tazakat Hussain

لاہور ہائی کورٹ، لاہور

Election Petition No.20792/2024

شہزاد نذیر بنام الیکشن کمیشن آف پاکستان وغیرہ

﴿بیان حلفی﴾

بیان زال: ملک تزاکت حسین اوتھ کشر، لاہور ہائی کورٹ، لاہور۔

- 1- شہزاد نذیر ولد چوہدری نذیر احمد، وکیل ہے اور لاہور میں رہتا ہے میں شہزاد نذیر کو ذاتی طور پر جانتا ہوں۔
- 2- مذکورہ بالا شہزاد نذیر 30 مارچ 2024 کو میرے پاس اپنی Election Petition کی تصدیق کروانے کے لیے آیا تھا۔
- 3- شہزاد نذیر کا بھائی اشفاق حسین بحیثیت تصدیق کنندہ اس کے ساتھ آیا تھا۔ تاہم چونکہ میں شہزاد نذیر کو ذاتی طور پر جانتا ہوں لہذا تصدیق کنندہ کی کوئی ضرورت نہ تھی۔
- 4- شہزاد نذیر نے 30 مارچ 2024 کو میرے سامنے اپنی Election Petition پر دستخط کیے تھے۔
- 5- میں نے جو ممبر Election Petition پر ثبت کی تھی اس پر لکھا تھا "I am personally known" کیونکہ میں شہزاد نذیر کو خود جانتا تھا اور تصدیق کنندہ کی ضرورت نہ تھی۔
- 6- میں نے "In person" نہ لکھا تھا۔
- 7- میں انگریزی زبان میں ماہر نہ ہوں لہذا مجھے علم نہ تھا کہ لکھنے کا درست طریقہ "He is personally known to me" لکھا تھا۔ میری لکھائی سے واضح ہے کہ "Person" نہ لکھا تھا۔
- 8- Election Petition میں نے پرنٹ کی تھی۔ غلطی سے تصدیق میں شہزاد نذیر کی جگہ راجہ راشد حفیظ (جس نے راولپنڈی کے لئے Election Petition شہزاد نذیر کے وکیل کی وساطت سے فائل کی تھی) کا نام لکھا رہ گیا کیونکہ اس کا نام Computer میں Saved تھا۔
- 9- مگر تصدیق میں شناختی کارڈ کا نمبر A-123456789 ہے اور 30 مارچ 2024 کو میں نے شہزاد نذیر کی ہی تصدیق کی تھی۔

محلف



تسلیم: آج مورخہ 12.2024 کو مقدمہ کی تصدیق کی جاتی ہے کہ بیان حلفی میرے علم و یقین کے

محلف

مطابق درست و صحیح ہے۔
Declared on Oath before me
on 3-12-24
By Malik Tazakat Husain
S/o Malik Tazakat Husain
R/o Malik Tazakat Husain
identified by Mr. Malik Tazakat Husain

MALIK TAZAKAT HUSAIN
OATH COMMISSIONER
Lahore High Court
Notification No. 114
DL 24-10-22 Expiry Date: 24-10-24

4. Mr. Muhammad Shan Gul was asked that who has administered the oath of Malik Tazakat Hussain. He stated that since he is an oath commissioner, therefore, there is no need that someone else should have administered his oath. Section 139 of the Code of Civil Procedure-1908 (the '**Code**') provides as follows:-

"139. Oath on affidavit by whom to be administered.- In the case of any affidavit under this Code---

- (a) any Court or Magistrate, or
- (b) any officer or other person whom a High Court may appoint in this behalf, or
- (c) any officer appointed by any other Court which the Provincial Government has generally or specially empowered in this behalf,

may administer the oath to the deponent."

Here it is also appropriate to reproduce the High Court Rules and Orders Chapter No. 12, Volume No. IV, Rule No. 12:-

"12. Mode of attestation.—The Court, Magistrate, or other officer as aforesaid, before whom an affidavit is made, shall certify at the foot of the affidavit the fact of the making of such affidavit before him, and shall enter the date and subscribe his signature to such certificate, and shall, for the purpose of identification, mark, date, and initial every exhibit referred to in the affidavit. The name of the verifying authority must be signed in full, and care must be taken that his proper designation as a Civil Court or Magistrate is added."

(Underlining is added in the above provisions)

5. Mere reading of the above reproduced provision of the *Code* as well as High Court Rules clearly reflects that oath for affidavit must be administered before the authority who is then required to certify at the foot of affidavit that oath was administered before him. The words used “by whom”, “before whom” and “before him” confirm that one cannot administer his own oath. Section 139 of the *Code* clearly provides that in case of any affidavit under the *Code*, Magistrate or Court or officer appointed by the concerned authority may administer the oath to the deponent. The one administering the oath and deponent are envisaged as separate persons. I have no doubt in my mind that even if someone has been authorized by the concerned authority to administer oath, by no stretch of imagination he can administer his own oath and attest the same, for present purposes. The affidavits dated 03.12.2024 of the oath commissioner are requested to be considered to clarify lacuna in a petition that is instituted under the Elections Act-2017 (the ‘*Act*’), which clearly have penal consequences.

6. Now I would like to examine the contentions of the learned counsel for the petitioner as to the objection of the respondent-side regarding the attestation of the election-petition. Page No. 17

containing verification and certificate part, is as under:-

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Any other relief that this Hon'ble Court deems appropriate be kindly awarded to the Petitioner.

PETITIONER

through:

MUHAMMAD SHAN GUL
Advocate Supreme Court of Pakistan

ASIF AFZAL BHATTI
Advocate High Court

BARRISTER BUSHRA SAQIB
Advocate High Court

MUHAMMAD SHAN GUL & ASSOCIATES
2/6 Faridkot House, Muneer Butt Road, Lahore

VERIFICATION:

Verified on oath at Lahore on this ___ day of March, 2024 that the contents of the Petition contained in Paras No. 1-20 and Grounds mentioned in the Petition are true to the best of my knowledge, information and belief and that nothings has been concealed therein.

PETITIONER

CERTIFICATE OF OATH COMMISSIONER:

Declared on oath on this ___ day of March, 2024 that Shahzad Nazir, Son of Ch. Nazir Ahmad, Resident of Post Office Raiwind, Sultanke, Tehsil & District, Lahore (Candidate from PP-165, Lahore-XXI) appeared before me and has signed and verified this Petition. The said Raja Rashid Hafeez was identified by me through his CNIC No. 35202-0896518-1 and was also identified by one _____ (CNIC No. _____)

Mr. Shahzad Nazir
S/o Ch. Nazir Ahmad
R/o Ch. Nazir Ahmad
Identified by Mr. Imam Hussain

DEPONENT/OATH COMMISSIONER

CERTIFICATE:

Certified that as per the instructions received, this is first Petition by the Petitioner on the subject and that this Petition is competent.

COUNSEL

The objected part of the certificate of oath commissioner reads “the said Raja Rashid Hafeez was identified by me through his CNIC No. 35202-0896518-1 and was also identified by one _____(CNIC No. _____) and admittedly, Raja Rashid Hafeez has no nexus with the election-petition. Mr. Muhammad Shan Gul states that the

same is typographical mistake and the original petitioner since is a lawyer personally knew Malik Tazakat Hussain / oath commissioner, therefore, this technical mistake should be ignored. It is also stated that words in the stamp should be taken as “I am personally known to the petitioner”. On 08.11.2024 learned counsel for the petitioner stated that oath commissioner made this mistake due to the reason that English is not the first language. The contention that oath commissioner was not well conversant with English language is not tenable. Learned counsel for the petitioner has also failed to assist if it was incumbent upon the oath commissioner to give the certificate only in English, if at all he was not conversant with this language. Here it is apt to have a look at Rule 14 of the High Court Rules and Orders, Volume-IV that reads as under:-

“14. Attesting Officer’s duty.—if any person making an affidavit appears to the Court, Magistrate or other officer administering the oath or affirmation, to be ignorant of the language in which it is written, or to be illiterate, or not fully to understand, the contents of the affidavit, such Court, Magistrate or officer shall cause the affidavit to be read and explained to him in a language which both he and such Court, Magistrate or officer understand; either doing so himself, or causing another person to do so in his presence. When an affidavit is read and explained to him in a language which both he and such Court, Magistrate or officer understand; either doing so himself, or causing another person

to do so in his presence. When an affidavit is read and explained as herein provided, such Court, Magistrate or other officer as aforesaid shall certify in writing at the foot of the affidavit that it has been so read and explained, and that the declarant seemed perfectly to understand the same at the time of making it.”

It is the duty of the attesting officer, when the deponent is ignorant of the language in which the affidavit is written, to explain the deponent as to the affidavit. It has been repeatedly observed by the Honourable Supreme Court of Pakistan as well as in “Abdul Wahab Baloch” case (*supra*) that verification of the election-petition is not to be signed in routine by the deponent and it is also the duty of the petitioner to insist and ensure that the proper endorsement is made.

7. The argument made by the learned counsel for the petitioner and explanation given in this regard is totally misplaced. Firstly, the explanation is attempted to be given through the affidavits of the oath commissioner attached with C. M. No. 01 of 2025. As already discussed, the said affidavits are not as per the mandate of law. Secondly, it is not requirement of law that oath commissioner should be known to the petitioner rather the requirement of the law is that the petitioner should be known to him or he is identified by the one known to the oath commissioner. Lastly, the affidavits of oath

commissioner attached with C. M. No. 01 of 2025 are in contradiction to the arguments adopted by the learned counsel for the petitioner before this Tribunal.

8. The election-petition is accompanied by four affidavits of the witnesses (attached at pages number 97, 100, 103 and 106). Besides the fact that all the affidavits of the witnesses contain almost same allegations, in all the affidavits the same anomaly is contained. In stamp of every affidavit words “I m person” are contained. Verification and attestation part of one of the witnesses is as follows:-

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42. That the declared margin of victory of returned candidate/Respondent No.3 is less than 5% of the total votes and number of rejected votes is way more than margin of victory and hence, the Petitioner is entitled for a recount of votes cast in Polling Stations No. 28, 29, 30, 31, 32, 35, 36, 37, 38, 60, 74, 75, 76, 77, 78 & 79.

محمد الیاس
DEPONENT

Verified on oath on this ____ day of March, 2024 at Lahore, that the contents of the above affidavit are true and correct according to information and belief and nothing has been concealed therein

محمد الیاس
DEPONENT



Declared on Oath before me
On 20-3-24
Mr. Mohd Aliyas
S/o Mohd Sadiq
R/o Mohd Sadiq
Identified by M. Tazakat Hussain

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30/3/24

File

MUHAMMAD SHAHBAZ
REGISTRAR
Election Tribunals
Lahore High Court, Lahore
20-11-24

MALIK TAZAKAT HUSSAIN
OATH COMMISSIONER
Lahore High Court, Lahore.
Notification No. 1140ent/LC.D.O.011
Dt. 26-10-22 Expiry Date: 022-10-2023

If the explanation given by the learned counsel for the petitioner is taken as correct that actually “I am personally” is written in the stamp then this raises question that whether the oath commissioner knows even the witnesses of the petitioner or he is personally known to each witness? No answer to this question could be given. Even the number of identification cards of the witnesses are not contained in the attestation. In case titled “Lt.-Col (Rtd.) Ghazanfar Abbas Shah V. Mehr Khalid Mahmood Sargana and Others” (2015 SCMR 1585) the Honourable Supreme Court settled that proper verification and attestation by oath commissioner is mandatory to maintain election-petition and a petition which is not in compliance is liable to be summarily dismissed by the Tribunal. It has been further observed that affidavit should contain endorsement that oath is actually and duly administered to the petitioner and verification must be in the manners as provided in the Code. Recently **C. P. No. 1394 of 2024** titled “Ubaidullah Versus Haji Atta Muhammad Bangulzai & Others” has been allowed by the Honourable Supreme Court, once again relying upon the “Lt.-Col (Rtd.) Ghazanfar Abbas Shah” case (**supra**) and emphasizing on the word “shall”, contained in the relevant provision of the Act. Paragraph No. 16 of the

same reads as under:-

*“This Court in the case of Lt. Col. (Rtd.) Ghaznfar Abbas Shah has categorically observed that **if the affidavits filed by a party are flawed in any way and are not verified on oath, then it will be considered that the same have not been attested on oath and accordingly, the election petition is liable to be, inter alia, dismissed on the basis alone.** Needless to state that there is a plethora of judgments on this issue which state that when anything is prescribed to be done in a particular manner, it needs to be done in that manner, otherwise, it will be considered to be non-est in the eyes of law.”*

(Emphasis supplied)

9. Learned counsel for the petitioner relied on case titled “Muhamamd Iqbal Versus Nabi Ahmad and 7 Others”(2017 YLR 2019) and stated that the learned Tribunal of Peshawar High Court has observed that minor mistakes in election-petition should be ignored, however, even this judgment is against the petitioner. In paragraph No. 11 of the said judgment it has been clearly observed that the language and command used in section 63 of Representation of Peoples Act 1976 is mandatory. Needless to observe that again the Act contains penal provisions and warrants rejection of the election-petition.

10. The importance of affidavits of the witnesses is discussed in detail in case titled “Mir Mujib-Ur Rehman Muhammad Hassani Versus Returning

Officer, PB-41 Washuk and Others” (PLD 2020 Supreme Court 718). The Supreme Court of Pakistan observed that full particulars of corrupt or illegal practices are required to be given by the petitioner, including the details as to date and place of commission of such acts of illegal practices together with documentary evidence in support of such allegations and when *ex facie* it is shown that the affidavits relied were all identical and duplicate of allegations, election-petition is rendered entirely deficient by virtue of section 144 of the Act. Paragraph No. 23 of the said judgment reads as under:-

*“23. The record shows that the allegations and insinuations made by the Appellant in his election-petition were deficient in many respects. Section 144 of the Act provides for the contents of an election-petition, the documents that must be attached with it, and the relief that can be claimed by the Appellant. In this respect, it is clear that the Appellant is required to provide the full particulars of any corrupt or illegal practices alleged by him to have taken place, the names and other details of the individuals he believes to be responsible for such practices, and the date and place of the commission of such practices or acts together with documentary evidence in support of such allegations. The Appellant has abysmally failed to provide these details. While the record shows that the Appellant did annex sixteen affidavits-in-evidence in support of his application, perusal of these affidavits *ex facie* shows that they are all identical and a duplicate of allegations made and details provided by the Appellant in every one of them. As a result, the Appellant’s election-petition is rendered*

entirely deficient by virtue of section 144 of the Act.”

11. For what has been discussed above, C. M. No. 01 of 2025 stands dismissed. This election-petition being deficient in many respects is rejected under section 145(1) of the Act. No order as to cost.

(Sultan Tanvir Ahmad)
Judge / Tribunal

J.A. Hashmi/-